

## 1. Line 1245 through 1249:

1245 Section **78B-6a-102.** is enacted to read:

1246 **78B-6a-102** Abrogation of common law nuisance -- Exception -- Reporting  
1247 requirement.

1248 (1) (a) ~~§~~→ [ {~~This~~} ] **Except as provided in Subsection (2), this** ~~←§~~ chapter abrogates

1248a any common law civil right of action for a public nuisance

1249 or a private nuisance in this state.

## 2. Line 1250 through 1255:

1250 (b) Subsection (1)(a) does not abrogate a common law civil right of action for public

1251 nuisance or a private nuisance that accrued, or is pending in a court, before May 6,

1252 2026.

1253 (2) ~~§~~→ [ {~~Notwithstanding Subsection (1), the~~} ] **The** ~~←§~~ attorney general may bring a

1253a common law civil

1254 right of action for a public nuisance or private nuisance in this state if:

1255 (a) the attorney general determines that there is a substantial ongoing harm to a